This form is approved by the Illinois Supreme Court and is required to be accepted in all Illinois Circuit Courts.

STATE OF ILLINOIS, CIRCUIT COURT _____ COUNTY	**MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS**	*For Court Use Only*

Instructions ▼	
Directly above, enter the name of the county where you will file the *Motion*.	Request of:
Enter your name, birth date, race, and gender. List any other names you used when arrested on the cases listed on this form.	**Your name** *(First, middle, last name)* **Other names used in these cases**
If the Circuit Clerk gave you a new case number, enter it to the right.	**Date of birth** **Race** **Gender** **Case Number** *(if the Circuit Clerk assigns a new number)*
Enter the number for all eligible cannabis convictions on your criminal record in this county.	**Case numbers of all eligible cannabis convictions on your record in this county:**

Note: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.
Noticia: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

In **1**, you cannot ask to vacate and expunge a criminal conviction unless one of the special situations listed under checkboxes **a** or **b** describes your case.

1. All of the cases listed have resulted in convictions for:
- a. ☐ Misdemeanor cannabis offenses under 720 ILCS 550/4 or 720 ILCS 550/5; AND/OR
- b. ☐ Class 4 felony cannabis offense under 720 ILCS 550/4 or 720 ILCS 550/5.

2. ☐ I was convicted before June 25, 2019.

In **3**, you must have completed each sentence, such as probation, or satisfied all conditions imposed by the convictions listed above.

3. ☐ I have completed the sentences or conditions imposed by the conviction in each of the cases listed.

Enter the Case Number given by the Circuit Clerk: _____

See *How to Vacate and Expunge Eligible Cannabis Convictions* to make sure all of your cases are convictions that are eligible to be vacated and expunged. For help filling out this table, see pages 4 & 5 in *How to Vacate and Expunge Eligible Cannabis Convictions.*

DO NOT list any dismissed cases, satisfactorily completed supervisions or satisfactorily completed qualified probations in this section. DO NOT list any cases where you received convictions for non-Cannabis charges.

In **4**, enter all eligible convictions on your record in this county. Enter all charges for each case number.

If you need more room for your arrests or cases, use the *Additional Cannabis Convictions* form, check the box and attach it.

4. ☐ I ask the court to **VACATE AND EXPUNGE** the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the arresting agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, on the dates and for the offenses listed below:

Case Number	Arresting Agency	Cannabis Conviction *(check the type of Cannabis conviction)*		Date of Arrest
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
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		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	

☐ I have listed additional cases on the attached *Additional Cannabis Convictions* form.

Enter the Case Number given by the Circuit Clerk: _____

In **5**, you must fill in the blanks in **a-c**. For **5b**, list your age when you were last arrested for a case listed in Section **4.** For **5c**, count the number of years (or months if a year has not passed) since your last conviction for a case listed in Section **4.**

5. a. I am currently _____ years old.

b. I was _____ years old when I was last arrested for a case listed on this *Motion.*

c. It has been at least _____ years or _____ months since my last conviction listed on this *Motion.*

In **6**, explain to the Court why you want to vacate and expunge your cases. See page 5 of *How to Vacate & Expunge Eligible Cannabis Convictions* for more information on filling out this section.

6. I am seeking to vacate and expunge the convictions listed above because I have been or may be denied housing, educational, employment, or other opportunities because of the conviction(s) (please explain):

Under Illinois Supreme Court Rule 137, your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

/s/ _____ _____

Your Signature *Date*

Prepared By:

_____ _____

Print Name *Street Address*

_____ _____

Attorney # (if any) *City, State, ZIP*

Enter your complete address, telephone number, and email address, if you have one.

_____ _____

Telephone *Email*

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.